

The Advisory Council for the Autonomous Districts Rules, 1967

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State of Assam - Act

The Advisory Council for the Autonomous Districts Rules, 1967

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The Advisory Council for the Autonomous Districts Rules, 1967

Rule THE-ADVISORY-COUNCIL-FOR-THE-AUTONOMOUS-DISTRICTS-RULES-1967 of 1967

Published on 1 January 1967

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The Advisory Council for the Autonomous Districts Rules, 1967

Last Updated 10th February, 2020

1.

These Rules shall be called "The Advisory Council for the Autonomous Districts Rules, 1967."

2.

These rules shall come into force at once.

3.

In these rules unless the context otherwise requires-

(a)

"Council" means the "Advisory Council" constituted in accordance with these Rules.

(b)

"Assembly" means the "Legislative Assembly of Assam."

(c)

"Governor" means the "Governor of Assam".

(d)

"Member" means the "Member of the Advisory Council."

(e)

"Secretary" means the "Secretary to the Advisory Council."

(f)

"State" means the "State of Assam."

(g)

"Autonomous Districts" means the "Autonomous Districts in Part A of the table appended to paragraph 20 of the 6th Schedule to the Constitution."

(h)

"Tribes Areas and Welfare of Backward Classes Department" means the "Tribal Areas and Welfare of Backward Classes Department of the Government of Assam."

4.

(1)

There shall be an Advisory Council consisting of the following members.

(a)

All the Tribal members of the Legislative Assembly representing various constituencies in the Autonomous Districts of Assam including the Shillong constituency.

(b)

Any Scheduled Tribe member or members of the Lok Sabha representing the constituencies reserved for Scheduled Tribes of the Autonomous Districts.

(c)

Any Scheduled Tribe member or members of the Rajya Sabha hailing from the Autonomous Districts.

(d)

The Chief Executive Members of the District Councils and the Chief Executive Member of the Pawi-Lakher Regional Council.

(e)

The Development Commissioner for the Hill Areas, Assam, Ex-officio.

(f)

The Commissioner of Hills Division, Assam, Ex-officio.

(g)

The Commissioner of Agricultural Production, Assam, Ex-officio.

(h)

The Secretary to the Government of Assam, Tribal Areas and Welfare of Backward Classes Department, Ex-officio.

(i)

The Deputy Commissioner for Scheduled Castes and Scheduled Tribes, in charge of Hills Districts of Assam, Ex-officio.

(j)

Any other member or members as may be nominated by the Government.

(2)

The Council shall have a Chairman. The Minister in charge Tribal Areas and Welfare of Backward Classes Department shall be the Chairman.

5.

The Council shall have a Secretariat staff consisting of a Secretary and such other officers and staff as the Governor may consider necessary to appoint. The Office of the Council will be located at Shillong and will form part of the Tribal Areas and Welfare of Backward Classes Department.

6.

The Council unless sooner dissolved by the Governor, shall continue until the dissolution of the existing Assembly and shall be reconstituted as soon as possible after the General Elections to Assembly.

7.

(1)

It shall be the duty of the Council to advise the Government on such matters pertaining to the welfare and advancement of the Scheduled Tribes in the Autonomous Districts of the State as may be referred to it by the Governor.

(2)

In particular and without prejudice to the generality of sub-rule (1) the Council shall-

(a)

assess the requirements of the Scheduled Tribes in the Autonomous Districts.

(b)

recommend welfare scheme for the development of the Autonomous Districts.

(c)

review from time to time the working of the schemes sanctioned for the development of Autonomous Districts Appraise and evaluate the benefits derived therefrom with a view to suggesting improvements or changes as and when necessary.

(d)

advise Government (i) on the administration of the Autonomous Districts; (ii) on the working and affairs of the Districts Councils and Regional Council.

8.

(1)

The Council may meet once or twice a year at such a place and on such date or dates as the Secretary may appoint with the approval of the Chairman.

(2)

In the absence of the Chairman, any other member chosen by the members present from among themselves shall preside over a meeting of the Council.

(3)

The Governor, whenever considered necessary, may direct that the Council may have joint meeting at Shillong with the Advisory Council for the welfare of the Scheduled Tribes living in the Plains Districts of Assam and Advisory Council for the welfare of the Scheduled Castes in Assam.

9.

The quorum to constitute a meeting of the Council shall be eight or one-third of the total number of the members of the Council, whichever is less.

10.

(1)

Matters shall be brought before a meeting of the Council for discussion by direction of the Governor.

(2)

A member who wishes to bring any matter for consideration at a meeting shall specify it in a memorandum indicating the salient facts and the points for consideration and send the memorandum to the Secretary who shall obtain the Chairman's direction thereon. The direction of the Chairman as to whether the matter referred to by the members falls within the purview of the Council or not shall be final.

11.

The agenda of a meeting of the Council shall be prepared by the Secretary with the approval of the Chairman.

12.

The Secretary shall ordinarily give at least one month's notice for any meeting of the Council but in cases of emergency the meeting of the Council may be called at short notice, as the Chairman may deem sufficient.

13.

The Secretary shall inform every members of the Council, the place, date and time fixed for the meeting and shall also send a copy of the agenda for the meeting together with a memorandum indicating the salient facts of each case, points for consideration and any other papers that may be necessary for consideration of each case included in the agenda.

14.

The Chairman may invite a Minister, Minister of State, Deputy Minister or a Parliamentary Secretary of the State to attend any meeting and to take part in a discussion of the Council.

15.

Any officer of the State other than the Ex-officio member whose presence is considered necessary by the Chairman for consideration of any matter before the Council shall attend a meeting of the Council as and when required to do so.

16.

(1)

The Secretary shall keep a record of the discussions and recommendations of the meeting of the Council and shall circulate a copy of the proceedings of the meeting of the Council to every member.

(2)

The recommendations of the Council shall as far as possible be unanimous, but if at any time no unanimous recommendation can be arrived at in respect of any particular matter before it, the Chairman shall ascertain the recommendations of the majority by taking the vote of the members present by show of hands, and the recommendation of the majority so determined, shall be deemed to be the recommendation of the Council:

Provided that the views of the dissenting members present and voting shall be recorded by the Secretary to form a record of the proceedings:

Provided further that the Ex-officio members shall not be eligible to vote.

17.

The proceedings of the meeting of the Council shall form a part of the records of the Council.

18.

The Council may, from time to time, by a resolution passed at a meeting appoint a committee or committees of its members to examine and report on any particular matter specified in the resolution. The Council may co-opt on the Committee or Committees non-officials who are not its members and may also associate with any such committees such officers of the State as may be nominated in that behalf by the Council.

19.

For attending a meeting of the Advisory Council the members shall be entitled to draw travelling allowance as follows-

(a)

official members shall draw such travelling allowance as may be admissible under the rules applicable to them.

(b)

non-official members shall draw such travelling allowance and daily allowance as admissible to a First Grade Officer.

20.

The Governor may, from time to time, amend these Rules.

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